

25STCV21427 25STCV21427

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Case Number: 25STCV21427 Hearing Date: September 8, 2026 Dept: 408

Plaintiff Jose D. Gonzalez's Motion
to Enforce Settlement is CONTINUED.

I.

BACKGROUND

On July 21, 2025, Plaintiff Jose D. Gonzalez ("Gonzalez") filed a complaint against Defendant Theresa J. Cano ("Cano") alleging causes of action for:

1.

Accounting;

2.

Partition of Real Property; and

3.

Declaratory Relief.

On September 9, 2025, Cano filed an answer to Gonzalez's complaint and a cross-complaint against Gonzalez alleging a single cause of action for breach of fiduciary duty.

On November 7, 2025, pursuant Cano's oral request, the court dismissed Gonzalez without prejudice from the cross-complaint.

On May 5, 2026, the court entered the parties' Stipulation to Retain Jurisdiction pursuant to Code of Civil Procedure section 664.6 following settlement and

dismissed Gonzalez's complaint without prejudice.

On July 15, 2026, Gonzalez filed this Motion to Enforce Settlement. On August 24, 2026, Cano filed an opposition. On August 31, 2026, Gonzalez filed a reply.

II.

LEGAL STANDARD

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).)

"Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (Weddington Prod., Inc. v. Flick (1998) 60 Cal.App.4th 793, 809.) In deciding motions made under Section 664.6, judges "must determine whether the parties entered into a valid and binding settlement." (Kohn v. Jaymar-Ruby (1994) 23 Cal.App.4th 1530, 1533.)

III.

DISCUSSION

Gonzalez moves to enforce the settlement between the parties whereby Cano agreed to pay Gonzalez the sum of \$292,000.00 to purchase his interest in the property located at 3327 Opal Street, Los Angeles, California 90023 ("Subject Property") in which each party owns an undivided 50% interest. (Motion, at p. 3; Sievers Decl., ¶ 4, Exh. 1.)

The settlement agreement provides that Cano was required to make the settlement payment within 90 days of the effective date of the agreement which was defined as the date that the last of the parties signs the agreement. (Sievers Decl., ¶ 4, Exh. 1, §§ 1.2-1.3.) Cano executed the agreement on March 18, 2026, and Gonzalez signed on March 25, 2026. (Ibid.) Gonzalez contends that Cano failed to pay the

settlement amount within 90 days of the effective date of March 25, 2026. (Motion, at p. 4.) Gonzalez notes that Section 1.3 of the settlement agreement states, in relevant part, that “[i]f Defendant does not pay the full Settlement Payment to Plaintiff within 90 days of the Effective Date of this Agreement, the Property shall be listed for sale by a broker mutually agreed upon by the Parties, the Property shall be sold to the highest and best offer, and the net sale proceeds shall be divided 50/50 between the Parties.” (Id., ¶ 4, Exh. 1, § 1.3.) Accordingly, Gonzalez request an order compelling the parties to list the Subject Property for sale pursuant to the explicit terms of the settlement agreement. (Motion, at pp. 7-8.)

In opposition, Cano contends that the settlement agreement requires Gonzalez to cooperate in the refinance process for Cano to pay the settlement amount and argues that Gonzalez frustrated every effort made to secure refinancing. (Opp., at pp. 2-3.)

The court finds that the information provided in opposition demonstrates that Gonzalez failed to cooperate with Cano’s efforts to secure financing to timely pay the settlement amount. Section 1.4 of the settlement agreement provides that “[t]he Parties each agree to execute and deliver any documents necessary for Defendant’s purchase of Plaintiff’s interest in the Property and to otherwise fully cooperate to facilitate Defendant’s payment of the Settlement Payment to Plaintiff.” (Sievers Decl., ¶ 4, Exh. 1, § 1.4.) Section 1.5 further provides that “[t]he Parties agree to cooperate with all reasonable requests from any real estate brokers, real estate agents, escrow, title companies, lenders, and persons or entities acting on their behalf in order to effectuate the sale of the Property and the closing of escrow, provided that said requests are consistent with the terms of this Agreement.” (Id., § 1.5.)

The court notes that, as part of Cano’s most recent efforts to secure a “bridge loan” from First Security Mortgage, an appraisal of the Subject Property took place on August 10, 2026. (Fernandez Decl., ¶¶ 5-12.) Following the appraisal, First Security Mortgage advised that, in order to authorize and fund the “bridge loan”, the Subject Property had to be cleaned up. (Id., ¶¶ 16-17, Exh. A.) First Security Mortgage also advised that it could not proceed with the loan until the appraiser inspected Gonzalez’s bedroom and determined that the area was not a “mess” as the appraiser did not have access to it during the

appraisal. (Id., ¶¶ 21.) Accordingly, Cano requests that the court orders Gonzalez to allow the appraiser access to his bedroom, allow pictures to be taken, and, if necessary, that Gonzalez cleans the area for Cano to secure the loan. (Cano Decl., ¶ 35.)

The court will provide Cano with an opportunity to secure the "bridge loan" from First Security Mortgage and orders Gonzalez to cooperate with the appraisal process. As such, the court will continue the instant motion. In the event that Cano cannot secure the "bridge loan", the court is inclined to grant the motion and proceed with the sale of the Subject Property.

IV.

CONCLUSION

Plaintiff Jose D. Gonzalez's Motion to Enforce Settlement is CONTINUED.